

Approved as to
form only:

Date: 6/16/21

**Prepared by, and Upon Recording
Return to:**

Eco-Site, LLC
750 Park of Commerce Drive, Suite 200
Boca Raton, FL 33487
Attn: Daniel Marinberg, Esq.

Site ID: US-WY-5035
GLBO

(Above Space for Recorder's Use Only)

EASEMENT AND ASSIGNMENT OF LEASE AGREEMENT

This EASEMENT AND ASSIGNMENT OF LEASE AGREEMENT ("Agreement") is made as of this _____ day of _____, 2021 ("Effective Date"), by and between the City of Cheyenne, a municipal corporation existing under the laws of the State of Wyoming ("Grantor"), and Eco-Site, LLC, a Delaware limited liability company ("Grantee").

WHEREAS, Grantor is currently the fee owner of that certain improved real property more particularly described on **Exhibit A**, attached hereto and incorporated herein ("**Burdened Property**"); and

WHEREAS, Grantee currently owns and operates a communications towers and related systems and equipment (collectively, the "**Tower**") located in and on a portion of the Burdened Property; and

WHEREAS, Grantor desires to grant to Grantee certain easement rights with respect to the Burdened Property, which shall, among other things, allow Grantee to access and operate the Tower; and

WHEREAS, Grantor is the current landlord under that certain Lease Agreement dated April 6, 2017, by and between Grantor and Grantee, as evidenced by the Form of Memorandum of Lease dated April 6, 2017, and recorded on November 1, 2017, in Book #2567, Page #1541, in the official records of the Clerk of Laramie County, Wyoming ("**Lease**"); and

WHEREAS, Grantor desires to assign to Grantee, and Grantee desires to assume from Grantor, all of Grantor's right, title, and interest as landlord in the Lease.

NOW, THEREFORE, for and in consideration of the mutual covenants and agreements contained herein, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

1. Assignment of Lease. Grantor does hereby assign, transfer, sell, and convey unto Grantee, its successors and assigns, all of the right, title, and interest of Grantor as landlord in, to, and under the Lease, effective as of the date hereof, to have and to hold the same unto the Grantee, its successors and assigns, for and during all the rest, residue, and remainder of the term of the Lease and any extensions or renewals thereof, all as set forth in the Lease, the provisions of which are by this reference thereto incorporated herein.

2. Grant of the Easements. Grantor, for itself, its heirs, personal representatives, successors, and assigns, hereby grants to Grantee, its heirs, personal representatives, successors, assigns, lessees, sublessees, licensees, customers, agents, and any other party claiming by or through Grantee ("**Grantee Parties**"), the following easements, to which easements the Grantee Parties shall have free and unfettered access seven (7) days per week, twenty-four (24) hours per day:

a. An exclusive perpetual easement ("**Tower Easement**") for the purposes of accessing, operating, and using the Tower and conducting business activities related to the Tower including, but not limited to, construction, installation, improvement, reconstruction, modification, supplementation, maintenance, operation, and/or removal of the Tower and construction of any additional towers on, across, and under that portion of the Burdened Property shown on **Exhibit B**, attached hereto and incorporated herein ("**Tower Easement Premises**"), and freely leasing, subleasing, or licensing space on the Tower to tenants, subtenants, or licensees from time to time. Grantee shall have full authority to prohibit entry to any party upon the Tower Easement Premises. In connection with the exclusive nature of the Tower Easement, Grantee shall, at Grantee's sole cost and expense, provide security fencing or other security features to control the exclusivity of the Tower Easement Premises to the Grantee Parties;

b. A non-exclusive perpetual easement ("**Utility and Access Easement**") for ingress, egress, and utilities including, but not limited to, installing, operating, maintaining, repairing, replacing, accessing, and supplying utility services to the Tower and locating, relocating, erecting, constructing, reconstructing, installing, operating, maintaining, patrolling, inspecting, repairing, replacing, altering, extending, and/or removing one or more overhead and/or underground cables and lines for communication, microwave, fiber, backhaul, and/or electricity and any necessary manholes, handholes, equipment, poles, appurtenances and attachments incidental thereto for all the above purposes, within, along, under, above, across, and through that portion of the Burdened Property shown on **Exhibit C**, attached hereto and incorporated herein ("**Utility and Access Easement Premises**");

c. The Tower Easement and the Utility and Access Easement are sometimes referred to herein individually and collectively as the "Easement" or "Easements". The Tower Easement Premises and the Utility and Access Easement Premises are sometimes referred to herein individually and collectively as the "Benefitted Property".

3. Duration; Consideration. Grantor and Grantee acknowledge and agree that this Agreement and the Easement will be perpetual from the Effective Date. Grantor and Grantee understand that Grantee shall pay to Grantor full consideration in the amount of Three Hundred Forty-Four Thousand Dollars (\$344,000.00) in one lump sum upon execution of this Agreement, that no additional monetary consideration is due in connection with this Agreement, and that this Agreement is irrevocable. Within ninety (90) days after the expiration or earlier termination of the Easement, Grantee shall have the option to remove all above-ground improvements. Grantee shall be at all times entitled to abandon all other footings, foundations, and other below-ground improvements in place.

4. Maintenance. Grantor shall be responsible for, and shall pay the cost of, all repairs and maintenance with respect to the Burdened Property and the Benefitted Property including, without limitation, the repair and maintenance of all roads, trees, and Grantor owned buildings and improvements located thereon; provided, however, that Grantee shall be responsible for and shall pay the cost of all repairs to the Tower Easement Premises, the Tower and any buildings and improvements owned by Grantee or Grantee's tenants, as well as repairs necessary for appurtenant uses of such Tower, buildings, or improvements.

5. Taxes. Grantee shall pay when due any and all personal property taxes assessed against the communication facilities located on the Benefitted Property to the extent such personal property taxes are invoiced directly to Grantee by the governmental authority with jurisdiction over the Benefitted Property. Grantor shall pay when due any and all property taxes and all other taxes, fees and assessments attributable to the Burdened Property and the improvements thereon. In the event that Grantor fails to pay when due any taxes, fees, and/or assessments affecting the Burdened Property and the improvements thereon or any easement relating to the Burdened Property, Grantee shall have the right, but not the obligation, to pay such taxes, fees, and assessments and seek reimbursement from Grantor.

6. Security Lien. Grantor consents to the granting by Grantee of a lien, security interest, and mortgage in Grantee's interest in the Easement and all of Grantee's personal property and fixtures attached to the real property described herein, and furthermore consents to the exercise by any mortgagee of Grantee ("**Lender**") of its rights of foreclosure with respect to any such liens and security interests. Grantor hereby agrees to give Lender written notice of any breach or default of the terms of the Agreement or any claim that Grantee has abandoned the Easements, within fifteen (15) days after the occurrence thereof, at such address as may be specified from time to time by Grantee or Lender. Grantor agrees that no default under this Agreement shall be deemed to have occurred unless notice of such default is given to Lender as provided herein. Lender shall have the right, for a period of ninety (90) days following receipt of notice from Grantor of a default, with the same effect as the Grantee, to cure or correct any such default whether the same shall consist of the failure to pay amounts due or the failure to perform, and Grantor agrees to accept such payment or performance on the part of the Lender as though the same had been made or performed by the Grantee. Grantor agrees to enter into any reasonable amendment to this Agreement requested by any existing or prospective Lender to Grantee.

7. Use and Access Restrictions. The uses and operation of the Burdened Property and any equipment or facilities thereon ("**Burdened Property Uses**") shall not interfere electrically or with the communications systems on any Tower now existing or hereafter constructed on the Benefitted Property. Notwithstanding anything in this Agreement to the contrary, if the Burdened Property Uses shall interfere with communications systems or equipment or the operation of any Tower located on the Benefitted Property, Grantor shall, upon reasonable written request, immediately suspend its Burdened Property Uses causing the interference and take such further actions as Grantee deems reasonably necessary, at Grantor's expense, to eliminate or remedy such interference or otherwise rectify the situation to the reasonable satisfaction of Grantee. Grantor and Grantee shall use good faith efforts to resolve any interference issues.

8. Grantor's Cooperation. Grantor hereby authorizes Grantee and its employees, representatives, agents, and consultants to prepare, execute, submit, file, and present on behalf of Grantor building, permitting, zoning, or land-use applications with the appropriate local, state, and/or federal agencies necessary to obtain land use changes, special exceptions, zoning variances, conditional use permits, special use permits, administrative permits, construction permits, operation permits, and/or building permits in connection with the use of the Benefitted Property pursuant to this Agreement. Grantor understands that any such applications and/or the satisfaction of any requirements thereof may require Grantor's cooperation, which Grantor hereby agrees to provide, including signing any such necessary documentation and, if required, attendance at hearings in front of applicable local authorities.

9. Agent and Attorney-in-Fact. Grantee is hereby appointed Grantor's attorney-in-fact solely for the purposes outlined in this Agreement in the performance of the grants and obligations created by this Agreement including, but not limited to, establishing Grantee's right and authority in this and to sign applications, documents, permits, or other documents required by local governmental authorities in connection with the use of the Benefitted Property pursuant to this Agreement. The appointment of Grantee as Grantor's attorney-in-fact hereunder is irrevocable and is hereby coupled with an interest.

10. Ownership. The Tower shall at all times remain the property of Grantee and may at all times be removed by the Grantee pursuant to the removal terms herein.

11. Survey. If a survey has not already been prepared and attached as an exhibit to this Agreement, Grantor agrees to cooperate with Grantee in obtaining a survey of the Burdened Property and the Benefitted Property, at Grantee's cost. Upon completion, such survey will be attached as an exhibit to this Agreement.

12. Amendment; Termination. Subject to Section 3, and except as otherwise may be expressly set forth herein, this Agreement and the Easement may be abandoned or terminated solely by Grantee and may be amended upon the mutual agreement of the parties in writing. Any such abandonment or termination shall be in writing, executed and acknowledged by Grantee, or in the case of amendment, shall be in writing, executed and acknowledged by

Grantor and Grantee, and duly recorded in the land records of the municipality where the Burdened Property is located.

13. Assignment. Grantee reserves the right to assign, transfer, mortgage, or otherwise encumber the Tower and Grantee's rights in this Agreement without notice to or consent of Grantor. If Grantee assigns this Agreement, such assignee agrees to assume all Grantee's obligations hereunder, and Grantee provides notice of such assignment to Grantor, Grantee shall be fully release of any liability and responsibility under this Agreement. Grantor may assign this Agreement only in its entirety and only to any person or entity who or which acquires fee title to the Property.

14. No Dedication for Public Use. The provisions hereof are not intended to and do not constitute a dedication for public use, and the rights herein created are private and for the benefit only of the parties hereto, the successors, assigns, tenants, subtenants, employees, invitees, and licensees, and the guests and invitees of such tenants and subtenants.

15. Runs with the Land. This Agreement shall run with the land so as to bind the successors and assigns of the Burdened Property (including any future owners in fee or leasehold) and to benefit the successors and assigns of the Grantee including, in each case, interests of tenants and subtenants and other users of the Burdened Property and the Benefitted Property.

16. Representations, Warranties, and Additional Covenants.

a. Grantor represents and warrants that it is the fee simple owner of the Burdened Property and the Easements granted herein, and that Grantee shall peaceably and quietly hold and enjoy the Easements without interference, hindrance, or obstruction by and party whatsoever.

b. Unless the Easements already constitute separate tax parcels or tracts, Grantor shall not subdivide or cause to be separately subdivided or assessed by any governmental authority any of the Easements. If any such subdivision, creation of separate tax parcel, or separate assessment shall be desired by Grantee in its sole discretion, Grantor shall cooperate with Grantee in obtaining any approvals and effectuating such a subdivision.

c. Grantor shall not create, grant, or permit any claim, lien, liability, encumbrance, easement charge, or restriction on title to the Easements that would adversely affect Grantee's use and enjoyment of the Easements or the rights granted under this Agreement.

d. Each party assumes the risk of any liability arising from its own conduct. Each party agrees that it will be responsible for any loss, claim, damages or demands resulting from its negligence and the negligence of its employees and agents. Neither party agrees to insure, defend, or indemnify the other. The City does not waive defenses available to it under the Wyoming Governmental Claims Act.

17. Entire Agreement. The unenforceability of any provision hereof shall not affect the remaining provisions of this Agreement, but rather such provision shall be severed and the remainder of this Agreement shall remain in full force and effect.

18. Compliance with Law; No Waiver. This Agreement and the rights and obligations created hereunder are subject to, and governed by the laws, decisions, rules, and regulations of any federal, state, or local regulatory authority charged with the administration of the transactions contemplated hereby. Waiver of a breach of any provision hereof under any circumstances will not constitute a waiver of any subsequent breach of such provision, or of a breach of any other provision of this Agreement.

19. Attorneys' Fees. In the event that either Grantor or Grantee should bring suit for the recovery of any sum due under this Agreement, or for enforcement of this Agreement, or because of the breach of any provision of this Agreement or for any other relief against the other, then all costs and expenses, including reasonable attorneys' fees, incurred by the prevailing party therein shall be paid by the other party, which obligation on the part of the other party shall be deemed to have accrued on the date of the commencement of such action and shall be enforceable whether or not the action is prosecuted to judgment.

20. Governing Law. This Agreement shall be construed and enforced in accordance with the laws of the state or commonwealth in which the Burdened Property is located.

21. Counterparts. This Agreement may be executed in counterparts with the same effect as if both parties hereto had executed the same document. Both counterparts shall be construed together and shall constitute a single document. Delivery of a copy of this Agreement bearing an original signature by facsimile transmission (whether directly from one facsimile device to another by means of a dial-up connection or whether mediated by the worldwide web), by electronic mail in "portable document format" (".pdf") form, or by any other electronic means intended to preserve the original graphic and pictorial appearance of a document, will have the same effect as physical delivery of the paper document bearing the original signature. For the purposes of this section, "original signature" means or refers to a signature that has not been mechanically or electronically reproduced.

22. Recording of Easement. Grantee shall be permitted to record, and Grantor shall execute, this Agreement or a Memorandum of Easement, reflecting the terms of the Easement, at Grantee's sole discretion.

23. Rule against Perpetuities. If the Benefitted Property is located in a state or commonwealth where the grant of the perpetual Easements hereunder would or could violate the rule against perpetuities or any similar law limiting or restricting the duration of real property interests and the Easements specifically, then the Easements shall be effective only from the date hereof until one day less than twenty-one (21) years following the death of the last surviving person born in the state or commonwealth where the Benefitted Property is located in the month this Agreement is recorded. If the provisions of this Section 23 become or are applicable, Grantor agrees to reasonably cooperate with Grantee to execute a new grant of the Easements on substantially the same terms as this Agreement immediately upon termination of this Agreement.

24. Restrictive Covenants. Grantor acknowledges and agrees that the Easements and the rights granted herein to Grantee are integral to the purchase price paid by Grantee to Grantor with respect to the Easements, and that Grantee would not have paid such monetary consideration to Grantor if Grantor were to create circumstances that would compete with the rights of Grantee and its intended business operations. Accordingly, Grantor agrees that, for so long as this Agreement is in effect, Grantor shall not:

a. Permit any lessee, sublessee, licensee, or other party granted any rights in or to the Burdened Property to grant a lease, sublease, license, easement, management agreement, or any other property or contractual interest to any third party for the ownership, operation, leasing, licensing, marketing, or management of wireless communications towers or structures;

b. Transfer the fee simple or leasehold title interest in the Burdened Property, or the rights to enforce or manage Grantor's rights and the obligation to perform Grantor's covenants hereunder, to any third party whose primary business is owning, operating, leasing, licensing, marketing, or managing wireless communications towers or structures, or purchasing and aggregating property and contractual interests under owners, operators, or managers of wireless communications towers; or

c. Construct or permit the construction of any wireless communications towers or structures on the Burdened Property (other than any construction by Grantee on the Benefitted Property).

25. Authority to Enter into Agreement. Grantee and Grantor each represent and warrant that they have full power and authority to execute, deliver, and perform their respective obligations under this Agreement.

IN WITNESS WHEREOF, the undersigned have executed this Agreement as of the dates written below.

Grantor Signature Page to Agreement

Grantor:

City of Cheyenne, Wyoming

Date

By: _____
Patrick Collins, Mayor

(SEAL)

Attest: _____
Kristina F. Jones, City Clerk

Grantor's Address: 2101 O'Neil Avenue
Cheyenne, Wyoming 82001

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

On the _____ day of _____, 2021, before me, a Notary Public, personally appeared Patrick Collins, Mayor of the City of Cheyenne, Wyoming, known to me to be the same person that executed the foregoing instrument, and acknowledged the said instrument to be his free and voluntary act and deed for the uses and purposes therein mentioned.

In witness whereof, I have hereunto set my hand and affixed my official seal the day and year first above written.

Notary Public
Print Name: _____

My Commission Expires: _____ [SEAL]

Grantee Signature Page to Agreement

Grantee:

Eco-Site, LLC, a Delaware limited liability company

Date

By: _____

Name: _____

Title: _____

Grantee's Address: 750 Park of Commerce Drive, Suite 200
Boca Raton, Florida 33487

STATE OF FLORIDA)
) ss.
COUNTY OF PALM BEACH)

The foregoing instrument was acknowledged before me by means of ☐ physical presence or ☐ online notarization this _____ day of _____, 2021, by _____, as _____ of Eco-Site, LLC, a Delaware limited liability company, on behalf of the company. He is personally known to me.

Notary Public
Printed Name: _____

My Commission Expires: _____ [SEAL]

Commission # _____

EXHIBIT A

LEGAL DESCRIPTION OF BURDENED PROPERTY

(Parent Parcel)

An interest in land, said interest being over a portion of the following described parcel:

That portion of the N½ of the NW¼ of Section 28, Township 14 North, Range 66 West of the 6th P.M., lying between Converse Avenue and Windmill Road and north of Lot 1, Block 6, Cheyenne Airport Addition, Laramie County, Wyoming.

Subject to and together with a 60-foot wide access easement for Lot 1, Block 6, as shown on page 5 of the Plat of Cheyenne Airport Addition, said plat being recorded on October 14, 1981, in Plat Cabinet 5, Page 21.

And being a portion of the same property conveyed to the City of Cheyenne from Laramie County, Wyoming, by Quitclaim Deed dated November 17, 2011, and recorded November 18, 2011, in Deed Book 2245, Page 1391.

Tax Parcel No. R0055875

EXHIBIT B

LEGAL DESCRIPTION OF LOCATION OF EXCLUSIVE TOWER EASEMENT

(Benefitted Property)

A portion of the NW¼ of Section 28, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, being more particularly described as follows:

Commencing at the north quarter corner of said Section 28; thence S. 30°13'02" W. (Bearings based on the north line of the NW¼ of Section 28, Township 14 North, Range 66 West of the 6th P.M., which bears N. 89°53'13" W.), a distance of 1071.49 feet to the Point of Beginning; thence S. 00°15'38" E., a distance of 50.00 feet; thence S. 89°44'22" W., a distance of 50.00 feet; thence N. 00°15'38" W., a distance of 50.00 feet; thence N. 89°44'22" E., a distance of 50.00 feet to the Point of Beginning.

Said parcel contains an area of 2,500 square feet or 0.057 acres, more or less.

EXHIBIT C

LEGAL DESCRIPTION OF LOCATION OF A NON- EXCLUSIVE ACCESS AND UTILITY EASEMENT

ACCESS AND UTILITY EASEMENT NO. 1:

A portion of the NW¼ of Section 28, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, being more particularly described as follows:

A strip of land, 30.00 feet in width, lying 15.00 feet on each side of the following described centerline:

Commencing at the north quarter corner of said Section 28; thence S. 30°13'02" W. (Bearings based on the north line of the NW¼ of Section 28, Township 14 North, Range 66 West of the 6th P.M., which bears N. 89°53'13" W.), a distance of 1071.49 feet; thence S. 00°15'38" E., a distance of 50.00 feet; thence S. 89°44'22" W., a distance of 50.00 feet; thence N. 00°15'38" W., a distance of 25.00 feet to the Point of Beginning; thence S. 89°44'22" W., a distance of 23.95 feet; thence along the arc of a curve to the left, having a radius of 10.00 feet, a central angle of 89°44'26", a distance of 15.66 feet; thence S. 00°00'04" E., a distance of 58.00 feet; thence along the arc of a curve to the right, having a radius of 10.00 feet, a central angle of 90°19'28", a distance of 15.76 feet; thence N. 89°40'36" W., a distance of 39.26 feet; thence along the arc of a curve to the right, having a radius of 10.00 feet, a central angle of 89°45'05", a distance of 15.66 feet; thence N. 00°04'28" E., a distance of 97.48 feet; thence along the arc of a curve to the left, having a radius of 10.00 feet, a central angle of 95°27'45", a distance of 16.66 feet; thence S. 84°36'43" W., a distance of 35.09 feet; thence along the arc of a curve to the left, having a radius of 10.00 feet, a central angle of 88°51'37", a distance of 15.51 feet; thence S. 04°14'54" E., a distance of 57.20 feet; thence S. 09°03'04" W., a distance of 98.46 feet; thence S. 16°35'41" W., a distance of 49.79 feet; thence S. 09°31'30" W., a distance of 67.29 feet; thence S. 00°29'03" W., a distance of 123.75 feet, more or less, to a point on the north line of Lot 1, Block 6 of Cheyenne Airport Addition, recorded October 14, 1981, as instrument G36439 in the records of Laramie County, Wyoming, said point being the Point of Terminus.

Sidelines of said strip extend or shorten as necessary to intersect the lines that the Point of Beginning and the Point of Terminus are a part of.

Said Parcel contains an area of 21,858 square feet or 0.502 acres, more or less.

ACCESS AND UTILITY EASEMENT NO. 2:

A portion of the NW¼ of Section 28, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, being more particularly described as follows:

A strip of land, 30.00 feet in width, lying 15.00 feet on each side of the following described centerline:

Commencing at the north quarter corner of said Section 28; thence S. 00°00'00" E. (Bearings based on the north line of the NW¼ of Section 28, Township 14 North, Range 66 West of the 6th P.M., which bears N. 89°53'13" W.), a distance of 1319.40 feet to a point on the north line of Lot 1, Block 6 of the Cheyenne Airport Addition, recorded October 14, 1981, as instrument G36439 in the records of Laramie County, Wyoming; thence N. 89°52'16" W. along the north line of said Lot 1, Block 6 of Cheyenne Airport Addition, a distance of 774.75 feet to the Point of Beginning; thence S. 00°29'03" W., a distance of 8.02 feet; thence along the arc of a curve to the right, having a radius of 10.00 feet, a central angle of 89°30'57", a distance of 15.62 feet; thence N. 90°00'00" W., a distance of 444.76 feet; thence S. 68°41'56" W., a distance of 34.23 feet; thence S. 89°40'54" W., a distance of 97.53 feet, more or less, to a point on the east right-of-way line of Converse Avenue, said point being the Point of Terminus.

Sidelines of said strip extend or shorten as necessary to intersect the lines that the Point of Beginning and the Point of Terminus are a part of.

Said Parcel contains an area of 18,000 square feet or 0.413 acres, more or less.

UTILITY EASEMENT:

A portion of the NW¼ of Section 28, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, being more particularly described as follows:

A strip of land, 30.00 feet in width, lying 15.00 feet on each side of the following described centerline:

Commencing at the north quarter corner of said Section 28; thence S. 30°13'02" W. (Bearings based on the north line of the NW¼ of Section 28, Township 14 North, Range 66 West of the 6th P.M., which bears N. 89°53'13" W.), a distance of 1071.49 feet; thence S. 00°15'38" E., a distance of 50.00 feet; thence S. 89°44'22" W., a distance of 40.00 feet to the Point of Beginning; thence S. 00°15'38" E., a distance of 132.90 feet; thence S. 37°10'33" W., a distance of 190.59 feet; thence N. 89°30'57" W., a distance of 65.67 feet to the Point of Terminus.

Sidelines of said strip extend or shorten as necessary to intersect the lines that the Point of Beginning and the Point of Terminus are a part of.

Said Parcel contains an area of 3,892 square feet or 0.089 acres, more or less.